



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Lonnie Olson– Planner I
Subject: A Resolution Approving the West Downtown Urban Renewal Plan and the West Downtown Urban Renewal Project Pursuant to Wyoming Statute § 15-9-110.
Date: August 28, 2023

Background:

The item for consideration is a **Resolution**.

The proposed Governing Body review schedule is as follows:

- Introduction and Public Hearing 8/28/2023
- Public Services Committee 9/06/2023
- Second and Final Reading 9/11/2023

Summary:

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021 authorizing the creation and use of powers for the Urban Renewal Authority. Included within the Urban Renewal Powers is the ability to make Urban Renewal Plans and Projects. The attached plan serves to establish the West Downtown Urban Renewal Plan and Project for the City of Cheyenne. The Governing Body adopted a Resolution on July 10, 2023 declaring the area as blight pursuant to § 15-9-107, thus making the area eligible for an Urban Renewal Plan and Project. The West Downtown Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified, all authorized urban renewal activities, the project financing (including tax increment financing), the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan.

The Urban Renewal Authority Board heard the plan at their August 3, 2023 meeting and recommended approval by a vote of 4-0. The item was then heard at the August 21, 2023 Planning Commission meeting and was recommended approval by a vote of 4-0. The Planning Commission staff report is attached and unchanged, except that the plan and project is attached to the resolution instead of the staff report.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING THE WEST DOWNTOWN URBAN RENEWAL PLAN AND THE WEST DOWNTOWN URBAN RENEWAL PROJECT PURSUANT TO WYOMING STATUTE § 15-9-110."

WHEREAS, pursuant to Resolution No. 6334 and under Wyo. Stat. § 15-9-101, *et seq.*, the City of Cheyenne found certain areas to be appropriate for an urban renewal project, including the "Expanded Downtown Study Area" as described in Resolution No. 6334;

WHEREAS, Resolution No. 6334 was adopted after hearings on July 10, 2023 and was found to be in conformity and appropriate for an urban renewal project pursuant to Wyo. Stat. § 15-9-107;

WHEREAS, on August 3, 2023 the City Urban Renewal Authority Board: (i) reviewed the West Downtown Urban Renewal Plan for the West Downtown Urban Renewal Project; (ii) found the West Downtown Urban Renewal Plan to be in conformity with PlanCheyenne; and, (iii) recommended that the Planning Commission recommend approval of the West Downtown Urban Renewal Plan for the West Downtown Urban Renewal Project in the form presented to the Urban Renewal Authority Board;

WHEREAS, Wyo. Stat. § 15-9-108 requires that before approving an urban renewal project, the Governing Body shall have submitted the applicable urban renewal plan to the City Planning Commission, for review and recommendations as to its conformity with PlanCheyenne, which is the general plan for the development of the City of Cheyenne;

WHEREAS, on August 21, 2023, the City Planning Commission: (i) reviewed the West Downtown Urban Renewal Plan for the West Downtown Urban Renewal Project; (ii) found the West Downtown Urban Renewal Plan to be in conformity with PlanCheyenne; and, (iii) recommended that the Governing Body adopt the West Downtown Urban Renewal Plan for the West Downtown Urban Renewal Project in the form presented to the Planning Commission;

WHEREAS, the Governing Body held a public hearing on the West Downtown Urban Renewal Plan and Project in accordance with Wyo. Stat. § 15-9-109(a);

WHEREAS, on August 12, 2023 and August 19, 2023, notice of the public hearing required by Wyo. Stat. § 15-9-109(b) was published in a newspaper having a general circulation in the area;

WHEREAS, on July 27, 2023, notice was mailed to all affected taxing agencies and property owners in the West Downtown Urban Renewal Plan and Project area;

WHEREAS, the Governing Body has reviewed the West Downtown Urban Renewal Plan and the West Downtown Urban Renewal Project, which is attached hereto and incorporated herein

as Attachment A, and, for the reasons set forth in such plan is able to make, and hereby makes, the following findings:

- (i) The West Downtown Urban Renewal Plan conforms to PlanCheyenne, and is consistent with definite local objectives respecting infill opportunities, locations for future revitalization, downtown revitalization and mix of uses, infill and revitalization incentives, building reuse, mix of activities downtown, and downtown placemaking; and,
- (ii) The West Downtown Urban Renewal Plan is sufficiently complete to indicate land acquisition, demolition and removal of structures, redevelopment, improvements, and rehabilitation as may be proposed to be carried out in the urban renewal area, zoning and planning changes, if any, land used, maximum densities and building requirements;

WHEREAS, the Governing Body has reviewed the West Downtown Urban Renewal Plan and the West Downtown Urban Renewal Project, and, for the reasons set forth in such plan is able to make, and hereby makes, the following findings:

- (i) Because the West Downtown Urban Renewal Plan does not propose relocating any residential properties, there is no need to designate a method for relocation of families displaced from the urban renewal area;
- (ii) The West Downtown Urban Renewal Plan conforms to PlanCheyenne as a whole;
- (iii) The West Downtown Urban Renewal Plan gives due consideration to the provision of adequate park and recreational areas and facilities that may be desirable for neighborhood improvement, with special consideration for the health, safety and welfare of children residing in the general vicinity of the site covered by the West Downtown Urban Renewal Plan; and,
- (iv) The West Downtown Urban Renewal Plan affords maximum opportunity, consistent with the municipality's needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise;

WHEREAS approval of the West Downtown Urban Renewal Plan and Project authorizes division of property taxes pursuant to Wyo. Stat. § 15-9-120 for the following properties:

- (i) All of Blocks 332, 351, 352, 392, 393, 394, of Original City, Cheyenne, Wyoming; and,
- (ii) All of Andiamo Subdivision, HGI Plaza, and Nishigawa Annex, Cheyenne, Wyoming; and,

WHEREAS, division of property taxes shall be collected and deposited into the Urban Renewal Fiduciary Fund and segregated for the purpose of the Urban Renewal Authority.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body of the City of Cheyenne, Wyoming, hereby approves the West Downtown Urban Renewal Plan and West Downtown Urban Renewal Project as shown in Attachment A.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

West Downtown Urban Renewal Plan

City of Cheyenne

Urban Renewal Plan and Project



Produced Summer 2023
Planning and Development Department

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Introduction

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021 authorizing the creation and use of powers for the Urban Renewal Authority. This action fulfilled the requirements in Wyo. Stat. § 15-9-106, § 15-9-107, § 15-9-133, and § 15-9-134 as the Governing Body adopted a resolution declaring one or more slum or blighted areas in the community and that the redevelopment of such areas are necessary for the health, safety, morals or welfare of the community; and the Governing Body delegated the authorities of Urban Renewal to the Cheyenne Urban Renewal Authority. By completing the previous actions and pursuant to Wyo. Stat. § 15-9-106, the City of Cheyenne has completed the prerequisites to exercise the authority conferred by the Wyoming Urban Renewal Code.

This plan serves to establish the West Downtown Urban Renewal Plan and Project for the City of Cheyenne. The West Downtown Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified in the project area, all authorized urban renewal activities, the project financing, the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan. The 15th Street Corridor Urban Renewal Plan will be referred to the Urban Renewal Authority and City Planning Commission for recommendations. The plan and recommendations will be introduced before the Governing Body for final consideration through Resolution. The creation of the plan and adoption thereof serves to enable and fulfill Wyo. Stat. § 15-9-107 through § 15-9-111, § 15-9-113, § 15-9-115 through § 15-9-116, and § 15-9-119 through § 15-9-132.

The West Downtown redevelopment is proposed to include commercial, residential, and office uses; or any mix of uses proposed by the development community. The plan has been created in anticipation of development opportunities in the area, including a proposed Downtown Hotel and the Cheyenne Children's Museum. The area offers prime land for redevelopment with a large amount of the included properties being comprised of surface parking. While the exact redevelopment is yet to be determined, the City of Cheyenne will utilize its Urban Renewal powers to aid the redevelopment with the remediation of environmental contaminants, building rehabilitation, targeted building demolition, and upgrades to necessary public improvements. The City plans to use tax increment financing (TIF), enabled by Wyo. Stat. § 15-9-120, to aid in the completion of these objectives. The use of these Urban Renewal powers and adoption of the plan will permit the redevelopment of the West Downtown through a robust public/private partnership and permit the utilization of Urban Renewal tools.

Urban Renewal Boundaries

The West Downtown Renewal Plan encompasses an area roughly bound by Bent Avenue to the west, Pioneer Avenue to the east, W. 19th Street to the north from Bent Avenue to O' Neil Avenue, W. 18th Street to the north between O' Neil Avenue and Thomes Avenue, W. 17th Street to the north between Thomes Avenue and Pioneer Avenue. The map of the Urban Renewal Area can be found below.

The legal description for the project area includes:

- All of Blocks 332, 351, 352, 392, 393, 394, of Original City, Cheyenne, Wyoming
- All of Andiamo Subdivision, HGI Plaza, and Nishigawa Annex, Cheyenne, Wyoming
- All public rights-of-way adjacent to the blocks referenced herein.



Conditions Survey

The Expanded Downtown study area is shown in Figure 2. The study area includes the blocks between Bent Avenue and House Avenue from the east to west and between 20th Street and the Union Pacific Railroad from the north to south, continuing along from House Avenue to Morrie Avenue from the east to the west and between the alley of 17th and Lincolnway to the Union Pacific Railroad from the north to the south and was adopted by the Governing Body on July 10, 2023. The study area included seven (7) of the nine (9) conditions of blight identified in the survey, demonstrating an area of blight in the community.

1. Deteriorated or Deteriorating Structures

Staff noted several deteriorating buildings in the Expanded Downtown area. Examples include 819 E 15th Street and 607 E Lincolnway; though several other buildings appear to be deteriorating and may be more so on the interior.

Indicators of deterioration witnessed include evidence of fire, boarded up buildings, and faulty building siding. The adjacent photos and those in Appendix B illustrate the study area meets this condition of blight.

2. Predominance of Defective or Inadequate Street Layout

The eastern portion of the Expanded Downtown study area contains large lots with few street connections. Staff noted that between House Avenue and Morrie Avenue and 15th Street and Lincolnway had poor connectivity in relation to the surrounding areas. Due to the faulty street network and the lack of adequate access, staff is satisfied this condition of blight is met.

3. Faulty Lot Layout in Relation to Size, Accessibility or Usefulness

The adjacent image in Figure 2 depicts the faulty lot layout in the study area. Many blocks contain platted alleys while others have been vacated.

This leads to confusion and lack of usable area for development purposes. In the eastern portion of the study area, lots have been divided poorly leaving certain lots unusable to be developed. Supplemental to this evidence of blight, many lots have not been platted since the Original City subdivision. Staff has difficulty interpreting the Original City subdivision and the legal descriptions are often a source of confusion. The inconsistency in alley vacation and age of the subdivision leads to faulty lot layout in relation to size, accessibility and usefulness.

4. Unsanitary or Unsafe Conditions

The Expanded Downtown area contained litter and a lack of connections between Lincolnway and East 15th street, meeting unsanitary conditions and unsafe conditions. Furthermore, the prevalence of industrial businesses and the age of the buildings in the area allude to possible environmental contamination. The litter, lack of connections, and environmental contamination confirm the presence of unsanitary and unsafe conditions throughout the Expanded Downtown study area.

5. Deterioration of Site or Other Improvements

The Expanded Downtown study area has deteriorated or missing curb, gutter, and sidewalk in various locations. The deteriorated site conditions have exacerbated the pedestrian connections in the Expanded Downtown. The locations that lack curb, gutter, and sidewalk create potential pedestrian and vehicular conflicts. Due to the deteriorated and missing curb, gutter, and sidewalk, staff is satisfied this condition of blight is met.

6. Diversity of Ownership, Tax or Other Special Assessments

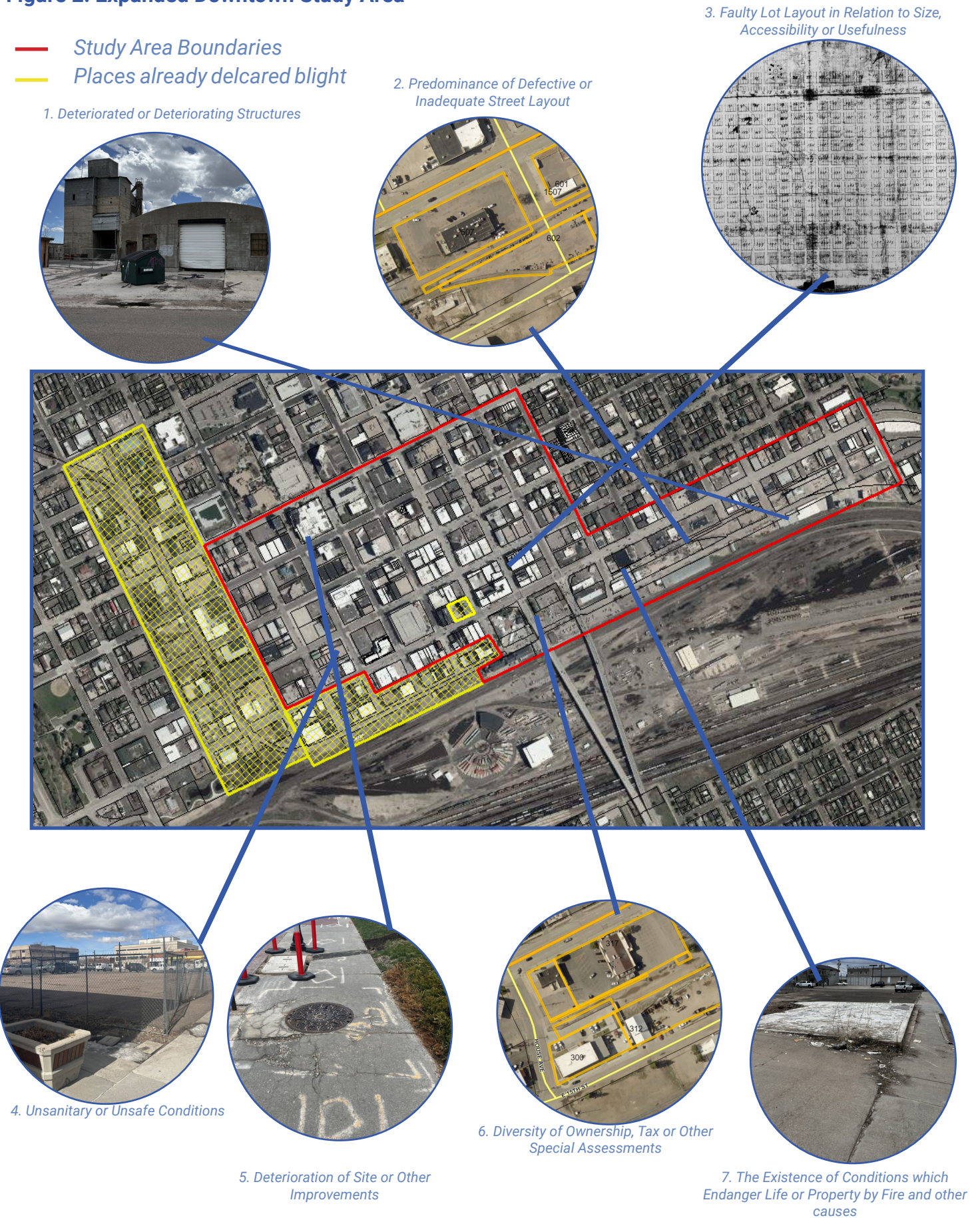
The Expanded Downtown study area contains a wide variety of ownership, making planning holistically difficult. A wide variety of ownership fosters many different perspectives and needs to be met. The corridor contains both public and private ownership, as well. It is also noteworthy that there are several owners that reside out of state. Staff noted that lots have been divided and sold through informal subdivision processes and that has created issues with ownership of parcels of land. Due to the variety of ownership and informal subdivision process, staff is satisfied this condition of blight is met.

7. The Existence of Conditions which Endanger Life or Property by Fire and Other Causes

The parcel located at 701 E Lincolnway burned in a fire in 2022 and remains a vacant lot. The potential environmental contamination from previous uses and the age of the structures lead to the probable contamination in the study area yield another condition that may endanger life and property. The noted fire and environmental contamination fulfill this condition of blight.



Figure 2: Expanded Downtown Study Area



Authorized Urban Renewal Activities

The conditions identified in the plan and project area yield that the property is in need of rehabilitation and that such redevelopment is in the best interest of the public health, safety, morals and welfare of the community. The City of Cheyenne will use the Urban Renewal powers authorized in Wyo. Stat. § 15-9-113 to:

- Improve streets; including curb, gutter, and sidewalks;
- relocate utilities as necessary;
- restore and improve historic structures that have fallen into disrepair;
- remediate environmental contamination;
- facilitate economic development and site beautification.

Upon passage of the Resolution adopting the West Downtown Urban Renewal Plan and Project area, all authorized Urban Renewal activities will be eligible for tax increment financing (TIF) assistance.

Tax Increment Financing Wyo. Stat. § 15-9-120

Pursuant to Wyo. Stat. § 15-9-120, the West Downtown Urban Renewal Plan authorizes the use of tax increment financing for the Urban Renewal Project Area as identified in the Urban Renewal Boundaries. Upon passage of the Resolution for this Urban Renewal Plan, taxes levied upon taxable property in:

- All of Blocks 332, 351, 352, 392, 393, 394, of Original City, Cheyenne, Wyoming, and
- All of Andiamo Subdivision, HGI Plaza and Nishigawa Annex, Cheyenne, Wyoming

shall be divided as follows:

- a. That portion of the taxes which would be produced by the rate upon which the tax is levied each year by or for each of the taxing agencies upon the total sum of the assessed value of the taxable property in the urban renewal project as shown upon the assessment roll used in connection with the taxation of the property

by the taxing agency, last equalized prior to the effective date of the urban renewal project shall be allocated to and, when collected, paid into the funds of the respective taxing agencies as taxes by or for those taxing agencies on all other property are paid; and

- b. That portion of the levied taxes each year in excess of the amount specified in paragraph (a) of this section shall be allocated to and, when collected, paid into a special fund of the City of Cheyenne to pay the principal and interest on loaned money advanced to, or any indebtedness (whether funded, refunded, assessed, or otherwise) incurred by the City or the Urban Renewal Authority, unless the total assessed valuation of the taxable property for the aforementioned properties exceeds the total assessed value of the taxable property in the project as shown by the last equalized assessment roll referred to in paragraph (a) of this section, all of the taxes levied and collected upon the taxable property in the urban renewal project shall be paid into the funds of the respective taxing agencies. When any loans, advances and indebtedness, if any, and interest have been paid in full, all monies thereafter received from taxes upon the taxable property in the urban renewal project shall be paid into the funds of the various taxing agencies as taxes on all other property are paid.

The tax increment will be used to fulfill the purposes of Wyo. Stat. § 15-9-121, which reads:

In any urban renewal plan or in proceedings for the advance of monies or making of loans or the incurring of any indebtedness by the municipality or agency to finance or refinance in whole or in part the urban renewal project, the portion of the taxes specified in W.S. 15-9-120(a)(ii) may be irrevocably pledged for the payment of the principal of and interest on those loans or advances or that indebtedness.

Again, the tax increment financing will be used

Plan Financing

to aid in the completion of the Urban Renewal activities specified in this plan; which include;

- Improve streets; including curb, gutter, and sidewalks;
- relocate utilities as necessary;
- restore and improve historic structures that have fallen into disrepair;
- remediate environmental contamination;
- facilitate economic development and site beautification.

The City will utilize the TIF to pay principal and interest on loans the City or a designated developer(s) receives for the purposes of carrying out the activities specified in this plan.

As mentioned in the previous section, the West Downtown Urban Renewal Plan and Project will utilize tax increment financing. The base of all the properties included in the plan boundaries is \$143,227.65. Like other Urban Renewal Plans and Project in the City of Cheyenne each project will be required to perform individually, meaning the project will only be able to collect TIF from the increment it creates. Due to development uncertainties and the number of properties in the project area, the Planning and Development Department has only performed a projection for the proposed downtown hotel. The site of the proposed downtown hotel in 2022 had a property tax of \$1,274.67. Based on information provided by the developer, the tax increment generation for the duration of the plan and project would come out to approximately \$1.68 million. Comparable properties used to base this projection was the Fairfield Inn Downtown, Tru by Hilton, Holiday Inn Express, Staybridge, and SpringHill Suites.



Map 1- Area of proposed Downtown Hotel

Conformance with the Comprehensive Plan

The West Downtown Urban Renewal Plan and Project complies with PlanCheyenne very similarly to the Hynds and the Hole and 15th Street Corridor Urban Renewal Plans. This is due to the fact they offer incentives via the tax increment financing, allow for the revitalization of Historic properties, and contain infill development. The West Downtown Plan helps achieve PlanCheyenne Foundation 5 - Celebrating our Character and Varied Heritages. This foundation states, "As Cheyenne grows, we will celebrate and enhance our character and heritage by focusing on preserving our historic areas and Downtown." One of the buildings in the plan area is an historic building in the Downtown District. The activities authorized under the Urban Renewal Plan will ensure the Historic atmosphere is preserved while catalyzing new development opportunities along the corridor.

Complementary to furthering Foundation 5, the Urban Renewal Plan and Project also reinforces the same Principles and Policies in PlanCheyenne as the 15th Street Corridor and Hynds and the Hole Plan:

- *Policy 1.4.A: Infill Opportunities*
- *Policy 1.4.B: Locations for Future Revitalization*
- *Policy 1.4.C: Downtown Revitalization and Mix of Uses*
- *Policy 1.4.D: Infill and Revitalization Incentives*
- *Policy 1.4.E: Building Reuse*
- *Policy 3.2.A: Mix of Activities Downtown*
- *Policy 3.2.C Downtown Placemaking*

The policies above show that the Urban Renewal Plan addresses Principle 1.4 and 3.2. These policies and Principles represent an instance in which the Urban Renewal Plan is in conformance with the comprehensive plan. PlanCheyenne contains several more policies and principles in which the Urban Renewal Plan and Project conform to. Through revitalization, building reuse, infill development, and Historic Preservation, this Urban Renewal Plan furthers the intent and objectives of PlanCheyenne.



Conformance with Wyo. Stat. §15-9-110

In order for an Urban Renewal Plan and Project to be approved the Governing Body must find that the plan meets the review criteria found in Wyo. Stat. § 15-9-110(a) and (b). Due to the fact that the West Downtown Urban Renewal Plan does not consist of open space to be acquired by the municipality, the plan will not address the findings of Wyo. Stat. § 15-9-110(b). Pursuant to Wyo. Stat. § 15-9-110(a), the plan achieves the following requirements:

(i) A feasible method exists for the relocation of families who will be displaced from the urban renewal area in decent, safe and sanitary dwelling accommodations within their means and without undue hardship to those families;

The plan and project area boundaries do encompass residential properties; but there is no intent to relocate or displace families located in this project area. The housing within this area is in new and great condition. There is hope that this plan and project will create more housing opportunities through the redevelopment of surface parking lots.

(ii) The urban renewal plan conforms to the general plan of the municipality as a whole;

PlanCheyenne is the Comprehensive Plan for the City of Cheyenne. As discussed in the previous section, the West Downtown Urban Renewal Plan conforms to PlanCheyenne.

(iii) The urban renewal plan gives due consideration to the provision of adequate park and recreational areas and facilities that may be desirable for neighborhood improvement, with special consideration for the health, safety and welfare of children residing in the general vicinity of the site covered by the plan;

The West Downtown Urban Renewal Plan gives due consideration to the provision of adequate parks and recreation areas

as a park is located just north of the project boundaries. The project area includes a children's museum that is under construction which would provide for recreational facilities. In addition, any multi-family development that would occur must contain open space which should have a recreation purpose.

(iv) The urban renewal plan affords maximum opportunity, consistent with the municipality's needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise.

The West Downtown Urban Renewal Plan affords the maximum opportunity for redevelopment by private enterprise. The plan is in anticipation for a downtown hotel which would create opportunities for areas in the vicinity to redevelop.

Plan Term

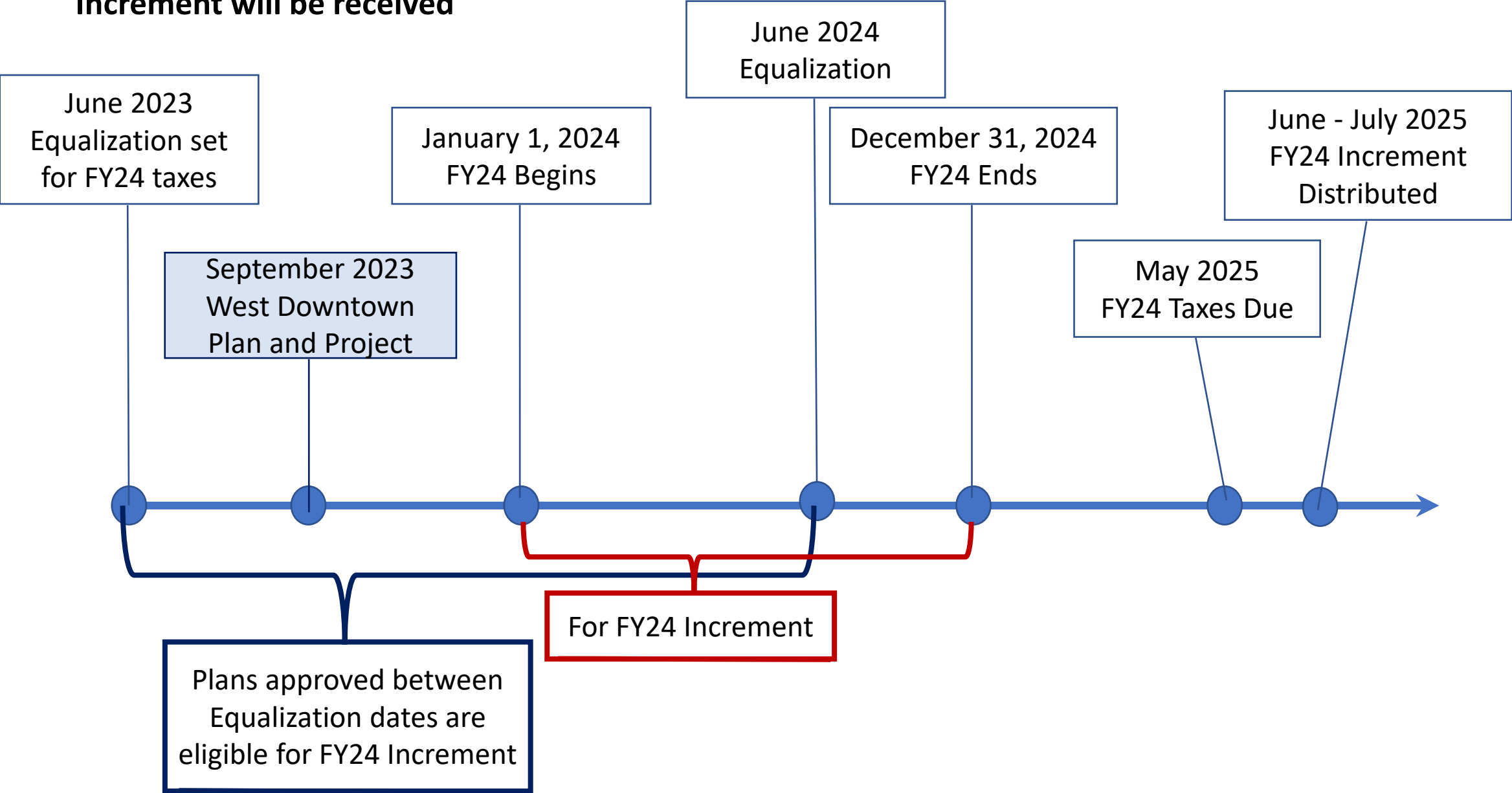
The Term of the West Downtown Urban Renewal Plan is 25 years from the approval of the Resolution by the Governing Body. The Plan shall be effective pursuant to Wyo. Stat. § 15-9-111(b). If the Governing Body deems that all projects have been accomplished and all debts incurred to finance those projects and all expenses of the Authority have been repaid, the Governing Body may declare this Plan fully implemented and the total tax collections derived from this Plan Area shall be paid into the funds of the appropriate taxing entity.

Amendment Procedures

This plan shall be amended pursuant to Wyo. Stat. § 15-9-111(a). All modifications to this Plan will be referred from the Urban Renewal Authority Board to the City of Cheyenne Governing Body and shall be approved by Resolution.



Calculating when the First Tax Increment will be received





A COMMUNITY OF CHOICE

Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

AUGUST 21, 2023

STAFF REPORT

REQUEST: Review of and recommendation to the Governing Body of the West Downtown Urban Renewal Plan and Project

Project: PLLR-23-2: West Downtown Urban Renewal Plan and Project

PREPARED BY: Lonnie Olson, Planner I



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the West Downtown Urban Renewal Plan and Project, as recommended by the Urban Renewal Authority, noting the request meets the review criteria of Wyo. Stat. § 15-9-110.

BACKGROUND:

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021 authorizing the creation and use of powers for the Urban Renewal Authority. This action fulfilled the requirements in Wyo. Stat. § 15-9-106, § 15-9-107, § 15-9-133, and § 15-9-134 as the Governing Body adopted a resolution declaring one or more slum or blighted areas in the community and that the redevelopment of such areas are necessary for the health, safety, morals or welfare of the community; and the Governing Body delegated the authorities of Urban Renewal to the Cheyenne Urban Renewal Authority. By completing the previous actions and pursuant to Wyo. Stat. § 15-9-106, the City of Cheyenne has completed the prerequisites to exercise the authority conferred by the Wyoming Urban Renewal Code.

This plan serves to establish the West Downtown Urban Renewal Plan and Project for the City of Cheyenne. The Governing Body adopted a Resolution on July 10th, 2023 declaring the area as blight pursuant to § 15-9-107, thus making the area eligible for an Urban Renewal Plan and Project. The West Downtown Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified in the project area, all authorized urban renewal activities, the project financing, the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan. The West Downtown Urban Renewal Plan will be referred to the Urban Renewal Authority and City Planning Commission for recommendations. The plan and recommendations will be introduced before the Governing Body for final consideration through Resolution. The creation of the plan and adoption thereof serves to enable and fulfill Wyo. Stat. § 15-9-107 through § 15-9-111, § 15-9-113, § 15-9-115 through § 15-9-116, and § 15-9-119 through § 15-9-132.

The West Downtown redevelopment is proposed to include commercial, residential, and office uses; or any mix of uses proposed by the development community. The plan had been created in anticipation of development opportunities in the area, including a proposed Downtown Hotel. The area offers prime land for redevelopment with a large amount of the included properties being comprised of surface parking. While the exact redevelopment is yet to be determined, the City of Cheyenne will utilize its Urban Renewal powers to aid the redevelopment with the remediation of environmental contaminants, building rehabilitation, and upgrades to necessary public improvements. The City plans to use tax increment financing (TIF), enabled by Wyo. Stat. § 15-9-120, to aid in the completion of these objectives. The use of these Urban Renewal powers and adoption of the plan will permit the redevelopment of the West Downtown through a robust public/private partnership and permit the utilization of Urban Renewal tools.

REVIEW CRITERIA:

The Planning Commission's role in adoption of the Urban Renewal Plan and Project is to review and provide a recommendation to the Governing Body as to whether or not to approve per Wyo. Stat. § 15-9-108. The specific review criteria are listed in Wyo. Stat. § 15-9-110 and is summarized in the attached West Downtown Urban Renewal Plan and Project document.

CONCLUSION:

Staff concludes that this Urban Renewal Plan and Project meets the applicable review criteria which is outlined in the attached Urban Renewal Plan and Project document.

STAFF RECOMMENDATION:

Staff recommends the Planning Commission recommend **approval** of the West Downtown Urban Renewal Plan and Project amendment as recommended by the Urban Renewal Authority, noting the request meets the review criteria of Wyo. Stat. § 15-9-110.

URBAN RENEWAL AUTHORITY RECOMMENDATION:

The Urban Renewal Authority recommend approval of the West Downtown Urban Renewal Plan and Project as presented by staff, noting the Plan and Project conforms with Wyo. Stat. § 15-9-110, and authorized submission to the Planning Commission for review and recommendation to the Governing Body.

ATTACHMENT:

A. The West Downtown Urban Renewal Plan and Project

The West Downtown Plan and Project has been
attached to the Resolution as Attachment A